

Key distinctions in blasphemy rulings

Analysis run: September 12, 2026

PROVIDER

Openrouter

MODEL

Openai/gpt-5.5

LANGUAGE

En

AUDIENCE

GENERAL

INTONATION

NEUTRAL

LENGTH

Long

TEMPERATURE

0.7

SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

USER PROMPT

Write a concise, self-contained article entry for the title: "Key distinctions in blasphemy rulings".

Overall topic for alignment: Blasphemy (sabb al-nabi) and freedom of expression in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Blasphemy in Islamic law is not a single category. Jurists distinguish between insulting God (**sabb Allāh**), insulting the Prophet (**sabb al-nabī**), mocking religion (**istihzā**), apostasy-related speech (**ridda**), criticism of juristic interpretations, and academic or artistic discussion. These distinctions depend on factors such as wording, intent, public impact, speaker identity, legal status, repentance, and whether the speech targets God, the Prophet, scripture, ritual, or human interpretation.

Classical Islamic law treated insult to the Prophet as especially grave because premodern Muslim societies linked religion, law, and political order. Public blasphemy was often seen not merely as private offense but as an attack on communal foundations. However, formal jurisprudence also emphasized procedure: recognized judges, evidence, legal capacity, intent, ambiguity, coercion, and due process. Vigilantism was not the legal norm.

The Qur'an provides both reverence-based and restraint-based themes: it stresses respect for God, prophets, and revelation, while also encouraging patience, dignity, and avoidance of compulsion. This creates a tension between protecting sacred honor and preventing retaliation or disorder.

The four Sunni legal schools agree that insulting God or the Prophet is serious, but differ in classification and consequences. Ḥanafīs are noted for procedural distinctions, especially regarding non-Muslims and covenantal status. Mālikīs are often described as strict on explicit, intentional insult to the Prophet. Shāfi'īs connect the issue with apostasy, public insult, and protection of religion. Ḥanbalīs strongly emphasize reverence while still placing enforcement under judicial authority. These differences show there is no single operational "Islamic ruling" detached from conditions and legal context.

Theological traditions also affect classification. Ash'arī, Māturīdī, Atharī, and historically Mu'tazilī approaches differ on divine attributes, metaphor, reason, and orthodoxy. Scholars distinguish disbelief, innovation, sin, concealed heresy, and explicit insult; not every theological error or disagreement is blasphemy.

Modern application is complicated by the gap between classical fiqh and contemporary nation-states. Muslim-majority countries face questions of codification, penalties, abuse prevention, minority protection, and human-rights compatibility. Muslim minorities usually respond through lawful protest, advocacy, education, and civil legal channels, not private enforcement.

Freedom of expression frameworks often protect offensive or irreverent speech, while Islamic blasphemy doctrines traditionally protect sacred honor and communal order. A careful approach distinguishes criticism, satire, academic inquiry, hatred against believers, incitement, threats, and defamation.

The article argues for a humanistic, legally cautious approach: separate sharia as divine ideal from fiqh as human interpretation; acknowledge juristic diversity; distinguish moral condemnation from legal enforcement; require lawful authority and due process; reject vigilantism; protect minorities and vulnerable speakers; recognize religious harm; and promote peaceful response, education, and dialogue.

FULL CONTENT

Key distinctions in blasphemy rulings

Blasphemy in Islamic law is often discussed under the Arabic terms **sabb al-nabī** (سب النبي, insulting the Prophet), **sabb al-rasūl** (سب الرسول, insulting the Messenger), **sabb Allāh** (سب الله, insulting God), **istihzā'** (استهزاء, mockery), and **ridda** (ردة, apostasy). The topic sits at the intersection of theology, criminal law, public order, religious identity, and freedom of expression. Because of this, classical and modern Muslim scholars have not always treated every offensive statement in the same way.

This entry outlines the main distinctions that shape blasphemy rulings in Islamic jurisprudence, while also noting contemporary human-rights concerns and the challenges of applying premodern legal categories in modern states.

1. Blasphemy is not one single legal category

A key distinction is between different types of offensive speech:

- **Insulting God:** often discussed as **sabb Allāh** or denial of divine attributes.
- **Insulting the Prophet Muhammad:** usually discussed as **sabb al-nabī**, a particularly grave category in classical law.
- **Mocking Islam or Islamic rituals:** may be treated as **istihzā' bi-l-dīn**.
- **Criticizing religious interpretations:** not necessarily blasphemy; disagreement with jurists, rulers, or schools of law is not the same as insulting God or the Prophet.
- **Academic, historical, or artistic discussion:** may be controversial, but classical categories depend heavily on intent, wording, public effect, and legal authority.
- **Apostasy-related speech:** if speech is understood as rejection of Islam by a Muslim, jurists may discuss it under **ridda**, not only blasphemy.

This distinction matters because many modern debates collapse all offensive, critical, satirical, or dissenting speech into one category. Classical jurists, however, typically asked more specific questions: Who spoke? What was said? Was it intentional? Was it public? Was it directed at God, the Prophet,

scripture, or a juristic opinion? Did it cause public disorder? Was the speaker Muslim or non-Muslim? Did the speaker repent?

2. Qur'anic foundations of sharia and speech ethics

In Islamic thought, **sharia** (الشريعة) refers to the divinely guided path, while **fiqh** (الفقه) is human juristic understanding of that path. The Qur'an is the foundational source, supplemented by the **Sunnah** (prophetic practice), **ijmā'** (scholarly consensus), **qiyās** (analogical reasoning), and other legal tools depending on the school.

The Qur'an strongly emphasizes reverence for God, respect for prophets, and the seriousness of mockery of revelation. At the same time, it also contains themes of patience, moral restraint, avoidance of compulsion in religion, and responding to insult with dignity. These themes created a legal and ethical tension: protecting the sanctity of religion on one hand, and regulating anger, retaliation, and social conflict on the other.

Classical jurists generally did not treat blasphemy merely as private offense. In many premodern settings, religion, law, and political order were deeply connected; public insult against the Prophet could be seen as an attack on the moral foundation of the community. This historical context is essential for understanding why blasphemy was often treated more severely than ordinary insult.

3. Historical context: premodern law and public order

Premodern Islamic societies did not operate with the modern distinction between secular state and religious community. Public religion was part of political legitimacy. The Prophet was not only a religious figure but also the founding authority of the Muslim community. Therefore, **sabb al-nabī** was often treated as a public legal offense, not just a theological error.

However, classical law was also procedural. In principle, punishment was not left to private individuals. Legal action required recognized authority, judges (**quḍāt**), evidence, and due process. The juristic literature often discusses witness testimony, confession, ambiguity in wording, coercion, mental capacity, and repentance. This is an important distinction: even where jurists considered blasphemy a severe offense, vigilantism was not the legal norm of formal jurisprudence.

Modern debates often arise because contemporary states vary widely. Some retain blasphemy provisions in criminal law; others protect offensive speech under constitutional free-expression standards. Some Muslim-majority societies see blasphemy law as protection of religious harmony; critics argue such laws may be misused against minorities, reformers, political opponents, or unpopular speakers.

4. Majority and minority settings

Blasphemy rulings are shaped by whether Muslims live as a political majority or minority.

In **Muslim-majority settings**, the question often concerns state law: whether the state should criminalize blasphemy, how it defines the offense, what penalties exist, and how to prevent abuse. Classical jurists assumed an Islamic legal order where courts were religiously grounded. Modern nation-states, however, operate with codified statutes, constitutions, police systems, media, and international obligations. This creates a gap between classical fiqh categories and modern criminal law.

In **Muslim-minority settings**, such as secular liberal democracies, Muslims generally navigate blasphemy through civil law, interfaith advocacy, public protest, media criticism, and community education. Most contemporary scholars emphasize that Muslims must not take the law into their own hands. They may condemn offensive speech, organize lawful responses, and advocate anti-hate protections, but they are bound by the legal order of the country in which they live.

This distinction is central to freedom of expression: a Muslim community may regard certain speech as deeply immoral or harmful, while the surrounding legal system may protect that speech unless it becomes incitement, harassment, defamation, or a direct threat.

5. Differences among Islamic juristic schools

The four major Sunni legal schools—**Ḥanafī**, **Mālikī**, **Shāfiʿī**, and **Ḥanbalī**—share the view that insulting God or the Prophet is a grave matter. Yet they differ in classification, procedure, and consequences.

Ḥanafī school

The **Ḥanafī** school is often associated with more procedural distinctions, especially regarding non-Muslim subjects under Muslim rule. In classical discussions, Muslim blasphemy could be connected to apostasy, while non-Muslim offenders might be treated differently depending on covenantal status, public order, and legal protections. Ḥanafī reasoning often pays close attention to whether an act violates an existing legal pact or constitutes a separate offense.

Mālikī school

The **Mālikī** school is known in many classical summaries for taking a strict view of **sabb al-nabī**, especially when the insult is explicit and intentional. Mālikī jurists often emphasized the honor of the Prophet and the public seriousness of verbal abuse. Discussions of repentance may differ depending on whether the issue is treated as a matter between the person and God or as a public offense requiring legal consequence.

Shāfiʿī school

The **Shāfiʿī** school also treats insult to the Prophet as extremely serious, but like other schools it discusses evidence, intention, legal capacity, and repentance. Shāfiʿī jurists commonly integrate the issue with broader doctrines of apostasy, public insult, and the protection of religion as a legal interest.

Ḥanbalī school

The **Ḥanbalī** school has influential discussions of **sabb al-nabi**, especially in later legal-theological writings. It often emphasizes uncompromising reverence for the Prophet, while still locating punishment within judicial authority. Like other schools, Ḥanbalī law distinguishes between theological condemnation, moral outrage, and legally valid enforcement.

These school differences show that “the Islamic ruling” is not always a single operational rule. Classical law includes majority positions, minority opinions, conditions, exceptions, and debates over repentance and jurisdiction.

6. Theological schools and the meaning of insult

Islamic theological traditions also affect how blasphemy is understood. The major Sunni theological orientations include **Ashʿarī**, **Māturīdī**, and **Atharī** approaches. Historically, **Muʿtazilī** theology also played a major role in debates about reason, divine justice, and scripture.

These schools differ in how they discuss divine attributes, metaphor, reason, and the boundaries of orthodoxy. A statement that one group sees as improper wording may be interpreted by another as metaphorical, mistaken, or heretical. This matters because not all theological error is treated as deliberate insult. Scholars often distinguish between:

- **kufr** (disbelief),
- **bidʿa** (religious innovation),
- **fisq** (sinful conduct),
- **zandaqa** (concealed heresy),
- and explicit **sabb** (insult).

A humanistic and legally cautious approach requires avoiding automatic escalation from disagreement to blasphemy. Islamic intellectual history contains sharp theological debate, but also methods for interpretation, correction, and restraint.

7. Repentance, intent, and due process

One of the most important distinctions is between moral guilt and legal guilt. Classical jurists often asked whether the speaker was:

- sane and legally responsible,
- adult,
- coerced or acting freely,
- aware of the meaning of the words,
- speaking in anger, quotation, satire, debate, or direct abuse,
- repentant,
- Muslim or non-Muslim,
- acting privately or publicly.

Tawba (توبه, repentance) is central in Islamic ethics. Yet jurists differed on whether repentance removes worldly punishment in every case. Some treated repentance as spiritually effective before God but not always as canceling a public legal consequence. Others gave repentance broader legal effect, especially when the offense was framed as apostasy.

Modern human-rights concerns tend to emphasize that vague blasphemy laws can punish intent poorly, suppress legitimate discussion, and encourage false accusation. A careful Islamic legal approach must therefore prioritize clarity, evidence, proportionality, and protection from mob violence.

8. Orientalist perspectives

An **orientalist perspective** historically referred to Western academic study of Islamic societies, sometimes shaped by colonial assumptions. In discussions of blasphemy, orientalist writers often portrayed Islamic law as rigid, punitive, and opposed to free inquiry. Some such portrayals were overly broad and ignored internal juristic diversity, procedural safeguards, and the role of historical context.

At the same time, modern academic study—whether Western, Muslim, or comparative—has helped highlight important questions: How did premodern jurists define public order? How did state power shape doctrine? How did Muslim empires treat religious minorities? How do modern blasphemy laws differ from classical *fiqh*? These questions can be useful when asked carefully and without reducing Islam to stereotypes.

A balanced approach recognizes both realities: Islamic legal tradition has strict doctrines concerning insult to the sacred, and it also contains interpretive diversity, procedural caution, and ethical commitments that are often overlooked.

9. Freedom of expression and human rights

Modern freedom of expression is often framed through constitutional law and the **Universal Declaration of Human Rights**. The human-rights tradition emphasizes freedom of thought, conscience, religion, and expression. It also recognizes that expression can be limited in certain circumstances, such as direct incitement to violence or serious attacks on the rights and safety of others.

The core tension is this: Islamic blasphemy law traditionally protects sacred honor and communal religious order, while modern free-expression law often protects even offensive, shocking, or irreverent speech. The two systems begin from different assumptions about religion, society, and harm.

A constructive approach distinguishes between:

- criticism of religion,
- hatred against believers,
- direct incitement to violence,
- defamation of individuals,
- academic inquiry,
- satire,
- deliberate provocation,
- and threats against communities.

This distinction helps avoid two extremes: criminalizing all criticism of religion, or dismissing all religious offense as irrelevant. Human dignity requires both protection of conscience and protection of persons from violence and intimidation.

10. AI's humanistic approach to sharia

An AI-assisted humanistic approach to sharia should not issue simplistic punishments or inflammatory rulings. Instead, it should clarify concepts, identify juristic diversity, and emphasize ethical safeguards. Such an approach should:

- distinguish **sharia** as divine ideal from **fiqh** as human interpretation;
- avoid presenting one school's ruling as the only Islamic view;
- separate moral condemnation from legal enforcement;
- emphasize due process and lawful authority;
- reject vigilantism and collective punishment;
- protect minorities and vulnerable speakers from misuse of accusation;
- recognize the pain caused by deliberate religious insult;
- uphold peaceful response, education, and dialogue;
- compare religious norms with modern human-rights commitments honestly.

This approach does not erase classical doctrine. Rather, it reads it with attention to context, purpose, and human consequences.

Conclusion

The key distinctions in blasphemy rulings concern category, intent, speaker identity, public harm, repentance, legal authority, and school methodology. **Sabb al-nabi** is treated with special seriousness in classical Islamic law, but the details vary across the Ḥanafī, Mālikī, Shāfiʿī, and Ḥanbalī schools. Theological traditions also influence how insult, error, heresy, and disagreement are classified.

In modern societies, the issue must be approached with caution. Muslim-majority states face questions of codification, abuse prevention, and human-rights compatibility. Muslim minorities face questions of lawful advocacy, religious dignity, and coexistence under free-expression regimes. A humane and principled approach should protect both religious conscience and human life, reject vigilantism, and insist that legal judgments require clarity, authority, and justice.

SEGMENTED DATA (2)

Key distinctions in blasphemy rulings

Blasphemy in Islamic law is often discussed under the Arabic terms **sabb al-nabī** (سب النبي, insulting the Prophet), **sabb al-rasūl** (سب الرسول, insulting the Messenger), **sabb Allāh** (سب الله, insulting God), **istihzā'** (استهزاء, mockery), and **ridda** (ردة, apostasy). The topic sits at the intersection of theology, criminal law, public order, religious identity, and freedom of expression. Because of this, classical and modern Muslim scholars have not always treated every offensive statement in the same way.

This entry outlines the main distinctions that shape blasphemy rulings in Islamic jurisprudence, while also noting contemporary human-rights concerns and the challenges of applying premodern legal categories in modern states.

1. Blasphemy is not one single legal category

A key distinction is between different types of offensive speech:

- **Insulting God:** often discussed as **sabb Allāh** or denial of divine attributes.
- **Insulting the Prophet Muhammad:** usually discussed as **sabb al-nabī**, a particularly grave category in classical law.
- **Mocking Islam or Islamic rituals:** may be treated as **istihzā' bi-l-dīn**.
- **Criticizing religious interpretations:** not necessarily blasphemy; disagreement with jurists, rulers, or schools of law is not the same as insulting God or the Prophet.
- **Academic, historical, or artistic discussion:** may be controversial, but classical categories depend heavily on intent, wording, public effect, and legal authority.
- **Apostasy-related speech:** if speech is understood as rejection of Islam by a Muslim, jurists may discuss it under **ridda**, not only blasphemy.

This distinction matters because many modern debates collapse all offensive, critical, satirical, or dissenting speech into one category. Classical jurists, however, typically asked more specific questions: Who spoke? What was said? Was it intentional? Was it public? Was it directed at God, the Prophet, scripture, or a juristic opinion? Did it cause public disorder? Was the speaker Muslim or non-Muslim? Did the speaker repent?

2. Qur'anic foundations of sharia and speech ethics

In Islamic thought, **sharia** (الشريعة) refers to the divinely guided path, while **fiqh** (الفقه) is human juristic understanding of that path. The Qur'an is the foundational source, supplemented by the **Sunnah** (prophetic practice), **ijmā'** (scholarly consensus), **qiyās** (analogical reasoning), and other legal tools depending on the school.

The Qur'an strongly emphasizes reverence for God, respect for prophets, and the seriousness of mockery of revelation. At the same time, it also contains themes of patience, moral restraint, avoidance of compulsion in

religion, and responding to insult with dignity. These themes created a legal and ethical tension: protecting the sanctity of religion on one hand, and regulating anger, retaliation, and social conflict on the other.

Classical jurists generally did not treat blasphemy merely as private offense. In many premodern settings, religion, law, and political order were deeply connected; public insult against the Prophet could be seen as an attack on the moral foundation of the community. This historical context is essential for understanding why blasphemy was often treated more severely than ordinary insult.

3. Historical context: premodern law and public order

Premodern Islamic societies did not operate with the modern distinction between secular state and religious community. Public religion was part of political legitimacy. The Prophet was not only a religious figure but also the founding authority of the Muslim community. Therefore, **sabb al-nabī** was often treated as a public legal offense, not just a theological error.

However, classical law was also procedural. In principle, punishment was not left to private individuals. Legal action required recognized authority, judges (**quḍāt**), evidence, and due process. The juristic literature often discusses witness testimony, confession, ambiguity in wording, coercion, mental capacity, and repentance. This is an important distinction: even where jurists considered blasphemy a severe offense, vigilantism was not the legal norm of formal jurisprudence.

Modern debates often arise because contemporary states vary widely. Some retain blasphemy provisions in criminal law; others protect offensive speech under constitutional free-expression standards. Some Muslim-majority societies see blasphemy law as protection of religious harmony; critics argue such laws may be misused against minorities, reformers, political opponents, or unpopular speakers.

4. Majority and minority settings

Blasphemy rulings are shaped by whether Muslims live as a political majority or minority.

In **Muslim-majority settings**, the question often concerns state law: whether the state should criminalize blasphemy, how it defines the offense, what penalties exist, and how to prevent abuse. Classical jurists assumed an Islamic legal order where courts were religiously grounded. Modern nation-states, however, operate with codified statutes, constitutions, police systems, media, and international obligations. This creates a gap between classical fiqh categories and modern criminal law.

In **Muslim-minority settings**, such as secular liberal democracies, Muslims generally navigate blasphemy through civil law, interfaith advocacy, public protest, media criticism, and community education. Most contemporary scholars emphasize that Muslims must not take the law into their own hands. They may condemn offensive speech, organize lawful responses, and advocate anti-hate protections, but they are bound by the legal order of the country in which they live.

This distinction is central to freedom of expression: a Muslim community may regard certain speech as deeply immoral or harmful, while the surrounding legal system may protect that speech unless it becomes incitement, harassment, defamation, or a direct threat.

5. Differences among Islamic juristic schools

The four major Sunni legal schools—**Ḥanafī**, **Mālikī**, **Shāfiʿī**, and **Ḥanbalī**—share the view that insulting God or the Prophet is a grave matter. Yet they differ in classification, procedure, and consequences.

Ḥanafī school

The **Ḥanafī** school is often associated with more procedural distinctions, especially regarding non-Muslim subjects under Muslim rule. In classical discussions, Muslim blasphemy could be connected to apostasy, while non-Muslim offenders might be treated differently depending on covenantal status, public order, and legal protections. Ḥanafī reasoning often pays close attention to whether an act violates an existing legal pact or constitutes a separate offense.

Mālikī school

The **Mālikī** school is known in many classical summaries for taking a strict view of **sabb al-nabī**, especially when the insult is explicit and intentional. Mālikī jurists often emphasized the honor of the Prophet and the public seriousness of verbal abuse. Discussions of repentance may differ depending on whether the issue is treated as a matter between the person and God or as a public offense requiring legal consequence.

Shāfiʿī school

The **Shāfiʿī** school also treats insult to the Prophet as extremely serious, but like other schools it discusses evidence, intention, legal capacity, and repentance. Shāfiʿī jurists commonly integrate the issue with broader doctrines of apostasy, public insult, and the protection of religion as a legal interest.

Ḥanbalī school

The **Ḥanbalī** school has influential discussions of **sabb al-nabī**, especially in later legal-theological writings. It often emphasizes uncompromising reverence for the Prophet, while still locating punishment within judicial authority. Like other schools, Ḥanbalī law distinguishes between theological condemnation, moral outrage, and legally valid enforcement.

These school differences show that “the Islamic ruling” is not always a single operational rule. Classical law includes majority positions, minority opinions, conditions, exceptions, and debates over repentance and jurisdiction.

6. Theological schools and the meaning of insult

Islamic theological traditions also affect how blasphemy is understood. The major Sunni theological orientations include **Ashʿarī**, **Māturīdī**, and **Atharī** approaches. Historically, **Muʿtazilī** theology also played a major role in debates about reason, divine justice, and scripture.

These schools differ in how they discuss divine attributes, metaphor, reason, and the boundaries of orthodoxy. A statement that one group sees as improper wording may be interpreted by another as metaphorical,

mistaken, or heretical. This matters because not all theological error is treated as deliberate insult. Scholars often distinguish between:

- **kufr** (disbelief),
- **bid'a** (religious innovation),
- **fisq** (sinful conduct),
- **zandaqa** (concealed heresy),
- and explicit **sabb** (insult).

A humanistic and legally cautious approach requires avoiding automatic escalation from disagreement to blasphemy. Islamic intellectual history contains sharp theological debate, but also methods for interpretation, correction, and restraint.

7. Repentance, intent, and due process

One of the most important distinctions is between moral guilt and legal guilt. Classical jurists often asked whether the speaker was:

- sane and legally responsible,
- adult,
- coerced or acting freely,
- aware of the meaning of the words,
- speaking in anger, quotation, satire, debate, or direct abuse,
- repentant,
- Muslim or non-Muslim,
- acting privately or publicly.

Tawba (توب, repentance) is central in Islamic ethics. Yet jurists differed on whether repentance removes worldly punishment in every case. Some treated repentance as spiritually effective before God but not always as canceling a public legal consequence. Others gave repentance broader legal effect, especially when the offense was framed as apostasy.

Modern human-rights concerns tend to emphasize that vague blasphemy laws can punish intent poorly, suppress legitimate discussion, and encourage false accusation. A careful Islamic legal approach must therefore prioritize clarity, evidence, proportionality, and protection from mob violence.

8. Orientalist perspectives

An **orientalist perspective** historically referred to Western academic study of Islamic societies, sometimes shaped by colonial assumptions. In discussions of blasphemy, orientalist writers often portrayed Islamic law as rigid, punitive, and opposed to free inquiry. Some such portrayals were overly broad and ignored internal juristic diversity, procedural safeguards, and the role of historical context.

At the same time, modern academic study—whether Western, Muslim, or comparative—has helped highlight important questions: How did premodern jurists define public order? How did state power shape doctrine? How did Muslim empires treat religious minorities? How do modern blasphemy laws differ from classical fiqh? These questions can be useful when asked carefully and without reducing Islam to stereotypes.

A balanced approach recognizes both realities: Islamic legal tradition has strict doctrines concerning insult to the sacred, and it also contains interpretive diversity, procedural caution, and ethical commitments that are often overlooked.

9. Freedom of expression and human rights

Modern freedom of expression is often framed through constitutional law and the **Universal Declaration of Human Rights**. The human-rights tradition emphasizes freedom of thought, conscience, religion, and expression. It also recognizes that expression can be limited in certain circumstances, such as direct incitement to violence or serious attacks on the rights and safety of others.

The core tension is this: Islamic blasphemy law traditionally protects sacred honor and communal religious order, while modern free-expression law often protects even offensive, shocking, or irreverent speech. The two systems begin from different assumptions about religion, society, and harm.

A constructive approach distinguishes between:

- criticism of religion,
- hatred against believers,
- direct incitement to violence,
- defamation of individuals,
- academic inquiry,
- satire,

- deliberate provocation,
- and threats against communities.

This distinction helps avoid two extremes: criminalizing all criticism of religion, or dismissing all religious offense as irrelevant. Human dignity requires both protection of conscience and protection of persons from violence and intimidation.

10. AI's humanistic approach to sharia

An AI-assisted humanistic approach to sharia should not issue simplistic punishments or inflammatory rulings. Instead, it should clarify concepts, identify juristic diversity, and emphasize ethical safeguards. Such an approach should:

- distinguish **sharia** as divine ideal from **fiqh** as human interpretation;
- avoid presenting one school's ruling as the only Islamic view;
- separate moral condemnation from legal enforcement;
- emphasize due process and lawful authority;
- reject vigilantism and collective punishment;
- protect minorities and vulnerable speakers from misuse of accusation;
- recognize the pain caused by deliberate religious insult;
- uphold peaceful response, education, and dialogue;
- compare religious norms with modern human-rights commitments honestly.

This approach does not erase classical doctrine. Rather, it reads it with attention to context, purpose, and human consequences.

Conclusion

The key distinctions in blasphemy rulings concern category, intent, speaker identity, public harm, repentance, legal authority, and school methodology. **Sabb al-nabi** is treated with special seriousness in classical Islamic law, but the details vary across the Ḥanafī, Mālikī, Shāfiʿī, and Ḥanbalī schools. Theological traditions also influence how insult, error, heresy, and disagreement are classified.

In modern societies, the issue must be approached with caution. Muslim-majority states face questions of codification, abuse prevention, and human-rights compatibility. Muslim minorities face questions of lawful advocacy, religious dignity, and coexistence under free-expression regimes. A humane and principled approach should protect both religious conscience and human life, reject vigilantism, and insist that legal judgments require clarity, authority, and justice.